Judgment Sheet

IN THE LAHORE HIGH COURT, LAHORE.
JUDICIAL DEPARTMENT

Writ Petition No.10509 of 2025.

Aamir Nazir. Versus The Federation of Pakistan etc.

JUDGMENT

Date of hearing:	08.05.2025.
Petitioners by:	Khawaja Omer Masood, Advocate.
Respondents by:	Ms. Babra Akram Jadoon, Assistant Attorney General, with Mirza Nauman Khurshid AO (GV-I), CGA Islamabad and M. Saleem AO (Legal), Director Postal Accounts, Lahore.

Shujaat Ali Khan, J: - Through this single judgment, I intend to decide W.P. No.10509 of 2025 (**this petition**) as well as W.P. Nos. 10514, 10515, 10519, 10523, 10528 and 10536 of 2025 (**connected petitions)** having commonality of law and facts.

2. Unnecessary details apart, the petitioners filed appeals before the Federal Service Tribunal (FST), Lahore for grant of ante-dated promotion which were accepted *vide* consolidated judgment, dated 18.01.2022 against which the department filed Civil Petition for Leave to Appeal (No.980-L/2022) but without any positive result as the same was dismissed by the Apex

Court of the country *vide* order, dated 07.08.2023 and review petition filed by the department against order, dated 07.08.2023, also met with the same fate. The petitioners filed applications (*Misc. Petitions Nos.101 to 107 of 2023*) before FST for implementation of its judgment, dated 18.01.2022. During hearing of said applications, with a view to manifest that the orders passed in favour of the petitioners were being implemented, the department brought on record Minutes of Meeting of the Departmental Promotion Committee, held on 22.09.2023, which were declared scanty and incomplete by the FST *vide* order, dated 06.11.2023. Thereafter, the FST, through order, dated 30.10.2024, disposed of the implementation applications with a direction to the department to issue Notification regarding promotion of the petitioners. Subsequently, disciplinary proceedings were initiated against the petitioners *inter-alia* with the allegation that they misstated certain facts while filing appeals before FST. Accordingly, Charge sheets, dated 20.11.2024 coupled with Statement of Allegations, dated 20.11.2024 were served upon the petitioners. Being aggrieved of issuance of Charge Sheet and Statement of Allegations, the petitioners filed Writ Petitions before this Court which were disposed of with a direction to the respondents to treat the points raised in the Writ Petitions as

objections on behalf of the petitioners and then to decide the fate of the disciplinary proceedings initiated against them. Pursuant to the order passed by this Court, the Controller General of Accounts, CGA Complex, Islamabad (**respondent No.2**), took up the matter and turned down the objections, *vide* order, dated 30.01.2025; hence these petitions.

3. Learned counsel for the petitioners submits that a perusal of the Charge Sheets as well as Statement of Allegations shows that the same are based on the contents of the service appeals, filed by the petitioners before the FST, thus, the same are not sustainable. Adds that *mala-fide* on the part of respondent No.2 is evinced from the fact that while disposing of earlier Writ Petitions, filed by the petitioners, this Court specifically directed that the fate of the objections, raised by the petitioners, against initiation of disciplinary proceedings against them, was to be decided in line with the points agitated in the Writ Petitions but none of them was even touched by respondent No.2 while passing the impugned order. Further adds that it is of common knowledge that pleadings are drafted by counsel for a party and the concerned party is not aware about the repercussion of any omission or commission therein, thus, the departmental proceedings against the petitioners are not tenable. Argues that non-decision of the matter in line with order, dated

09.12.2024, passed by this Court, amounts to willful contempt of Court on the part of respondent No.2. Further argues that in case there was any concealment or misrepresentation on the part of the petitioners, while filing appeals before the FST, the respondents could approach the said forum by filing an application under Section 12(2) CPC but the said fact cannot be used to maintain disciplinary proceedings against the petitioners. Contends that none of the conditions, stipulated under rule 3 of the Civil Servants (Efficiency & Discipline) Rules, 2020 (**the Rules 2020**) are attracted in the matter in hand, thus, the impugned departmental proceedings against the petitioners are not justified.

4. Learned Assistant Attorney-General, while opposing the submissions, made by learned counsel for the petitioners, submits that since matter relating to implementation of judgment of the FST is pending before the said forum, no interference is called for in these proceedings. Adds that since no adverse action has been taken against the petitioners, these petitions are premature, hence, liable to be dismissed on that score alone. Further adds that any interference by this Court, at this stage, would amount to deprive the Competent Authority of his power to thrash allegations against the petitioners. Argues that in case of any adverse order, the petitioners would be at

liberty to challenge the same in appropriate proceedings before the relevant forum, thus, these petitions merit dismissal.

5. I have heard learned counsel for the parties at considerable length and have also gone through the documents, appended with these petitions.

6. A cursory glance over the Charge Sheets as well as Statements of Allegations shows that the petitioners are being proceeded against on the ground that they misstated certain facts while filing appeals before the FST. Firstly, if there was any question of misstatement or concealment in the pleadings, filed by the petitioners before the FST, the department could conveniently file application under Section 12(2) CPC *ibid* for setting aside the judgment of the FST or initiation of any action against the petitioners on said score before approaching the Hon'ble Supreme Court of Pakistan. Though, in the Minutes of Meeting of the Departmental Promotion Committee, held on 22.09.2023, it was recommended to file application under section 12(2) CPC before the FST but the same did not materialize as no such application was filed by the respondents before FST, according to the available record. Moreover, as per Section 195 Cr.P.C., a forum is authorized to refer the matter to Police for initiation of criminal proceedings in case it has come to the conclusion that a party was guilty of misstatement or

concealment of any material fact with a view to misguide the said forum. Since neither the respondents filed application under Section 12(2) CPC *ibid* nor make any move for initiation of criminal proceedings in terms of Section 195 *ibid* against the petitioners on account of alleged misstatement, they cannot be allowed to initiate disciplinary proceedings at such belated stage.

7. Though learned Assistant Attorney-General has addressed the Court at reasonable length but has not been able to refer to any document to show that the grounds being pressed into service were agitated before the FST or before the Hon'ble Supreme Court while filing Civil Petition for Leave to Appeal or Review Petition, thus, the same cannot be allowed to make ground for initiation of disciplinary proceedings against the petitioners.

8. It is admitted position that the appeals, filed by the petitioners, were accepted by the FST and the Civil Petition for Leave to Appeal as well as Review Petition, filed by the department, against the decision of the FST, were dismissed by the Hon'ble Supreme Court of Pakistan. In this backdrop, initiation of proceedings against the petitioners on the basis of alleged concealment/misstatement in their pleadings, which otherwise were drafted by their counsel, are not justified.

9. It has been admitted by learned Assistant Attorney-General that the proceedings against the petitioners have been initiated under rule 3 of the Rules 2020, which for convenience of reference, is reproduced herein below:-

> *"3.* ***Grounds for proceedings and penalty****.—A civil servant shall be liable to be proceeded under these rules by the authority, if he is—*
>
> *(a) considered or reported to be inefficient or has ceased to be efficient; or*
>
> *(b) considered or reported to be guilty of misconduct; or*
>
> *(c) considered or reported to be corrupt because—*
>
> *(i) he or any of his dependents or any other person through him or on his behalf is in possession (for which he cannot reasonably account) of pecuniary: resources or of property disproportionate to his known sources of income; or*
>
> *(ii) he has assumed a style of living beyond his ostensible means;*
>
> *(d) engaged, or is reasonably suspected of being engaged, in subversive activities or is reasonably suspected of being associated with others engaged in subversive activities or is guilty of disclosure of official secrets to any un-authorized person."*

A perusal of the afore-quoted rule shows that the circumstances wherein a government servant can be proceeded against under the Rules 2020 are completely missing in the cases in hand. Though learned Assistant Attorney-General has tried to establish that since misstatement in their appeals before the FST constitute misconduct on the part of the petitioners but has not been able to convince this Court as to how said fact can be

connected with their official conduct. Every government servant is governed under the code of conduct applicable to him and in case of violation of such code the competent authority reserves right to proceed against him but in my humble opinion, the competent authority cannot proceed against a government servant on the basis of his private acts. At the cost of repetition, it is observed that if the petitioners were responsible for any misstatement or misrepresentation while filing appeals before FST, the respondents could ask the said forum to take action against them but were not justified to initiate disciplinary proceedings against them on said score alone.

10. It is well established by now that an authority or forum before assuming jurisdiction in a matter would decide the question *qua* maintainability of the proceedings. Insofar as the cases in hands are concerned, it is matter of record that this Court *vide* order, dated 09.12.2024, passed in W.P.No.76893 of 2024 and other petitions, referred the matter to respondent No.2 to decide the fate of the proceedings initiated against the petitioners while treating the points raised in the Writ Petitions as objections but a perusal of the impugned order shows that none of the objections, taken by the petitioners, in their earlier Writ Petitions, was even touched by respondent No.2. Had respondent No.2 dilated upon the objections contained in the

earlier Writ Petitions, filed by the petitioners, the decision might have been different.

11. This Court has least sympathy with the petitioners but they are entitled to be dealt with in accordance with the law as mandated under Article 4 of the Constitution of Islamic Republic of Pakistan, 1973. The Hon'ble Supreme of Pakistan in the case of *All Public Universities BPS Teachers Association (APUBTA) through its President v. The Federation of Pakistan through Secretary Federal Education and Professional Training, Islamabad and others* (**2025 SCMR 322**), while highlighting the importance of the fundamental right that every citizen should be treated as per law in terms of Article 4 *ibid* has *inter-alia* held as under:-

> *"2.***** Article 4 of the Constitution stipulates that citizens have an inalienable right to be treated in accordance with the law, but if public sector universities, funded by the taxpayers do not operate in accordance with laws governing them, then citizens are not being treated in accordance with the law."*

If the act of the respondents towards initiation of departmental proceedings against the petitioners is considered in the light of the afore-referred judgment of the apex Court of the country there leaves no confusion that since the petitioners are governed under the Rules 2020, in respect of their terms and conditions of service, the respondents cannot be allowed to continue with the disciplinary proceedings against them on the basis of

allegations which are alien to Rule 3 of the Rules 2020. As discussed earlier ,none of the conditions, enumerated under rule 3 *ibid*, are attracted in the matters in hand, thus, there is no valid justification with the respondents to continue with the proceedings initiated against the petitioners.

12. While assisting the Court, learned Assistant Attorney-General put much emphasis on the fact that since the matter relating to implementation of decision of the FST in favour of the petitioners is pending before the said forum, no interference is permissible in these proceedings. Perhaps, learned Law Officer has raised such plea in oblivion of the fact that instead of lending any help to the respondents, the same goes against them inasmuch as *prima-facie* in order to avoid implementation of the decision of FST in favour of the petitioners or to malign and harass them, the respondents have used the disciplinary proceedings as a pressurizing leverage just to keep them aloof from the benefit of the decision of the FST which has attained finality after having been upheld by the Hon'ble Supreme Court of Pakistan.

13. This Court is cognizant of the fact that this Court rarely exercises its constitutional jurisdiction to interfere in the matters relating to departmental proceedings against civil servants but when the same are found to be *void ab-initio* or are tainted with

mala-fide the same are to be quashed while following the principle to nip the evil in the bud and the employees cannot be made to suffer the rigors of unending disciplinary proceedings. Reliance in this regard is placed on the cases reported as *Muhammad Tariq Khan v. The National Bank of Pakistan through President/CEO and 4 others* (**2024 CLD 1350**), *Muhammad Akram Sohail v. Govt. of the Punjab through Secretary Forest Department, Punjab, Lahore and others* (**2024 LHC 1923**), *Prof. Dr. Mahmood Baig (Sitara-i-Imtiaz) v. Ministry of Science and Technology through Federal Minister for Ministry of Science and Technology and 4 others* (**2024 PLC (C.S.) 1451**), *Fahad Faizan Khan v. Federation of Pakistan through Secretary, Revenue Division and 2 others* (**2023 PLC (C.S.) Note 4**) and *Samina Pathan v. Federation of Pakistan through Secretary Interior Division and 5 others* (**2018 PLC (C.S.) Note 36**). In the case of *Muhammad Tariq Khan* (Supra), this Court, while dealing with the proposition, under discussion, has *inter-alia* held as under: -

> *"20. I am cognizant of the fact that though jurisdiction of this Court under Article 199 of the "Constitution" to some extent is limited with respect to the orders ensuing from the departmental proceedings determining the guilt or otherwise of an employee but this Court being custodian of the rights of citizens cannot shut its eyes when the patent illegalities are floating on the surface of the record. Right of earning is right to life and no one can be allowed to take away such right in a clandestine manner. The petitioners were proceeded against in a*

> *non-transparent and haphazard manner in the departmental proceedings, which culminated into their dismissal from service. The impugned orders are apparently suffering with patent illegalities and against the principles of natural justice."*

Insofar as the matters in hand are concerned, though learned Law Officer has tried to persuade this Court that no interference is called for in these matters at this stage but has not been able to give even half a reason as to how the respondents can be allowed to continue with the departmental proceedings which otherwise are alien to the conditions enumerated under Rule 3 *ibid*.

14. As a necessary corollary to the discussion made hereinabove, I have no hesitation to hold that edifice of the disciplinary proceedings against the petitioners are alien to Rule 3 *ibid*, thus, the same are non-sustainable. Consequently, these petitions are **accepted** and impugned orders, passed by respondent No.2, are **set-aside**. As a result the proceedings initiated against the petitioners are quashed being *void ab-initio*. No order as to costs.

Judge

Approved for reporting.

Judge

Jamil*